

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
COUNTY CIVIL

COLONIAL MOBILE MANOR, LIMITED,
LLLP d/b/a COLONIAL MOBILE MANOR,

Plaintiff,

v.

CASE NO.: 2015 CC 1309

KAREN MORRIS and
ANY UNKNOWN TENANT(s)

Defendant(s).

_____ /

**EMERGENCY MOTION TO CONTINUE TRIAL SCHEDULED
FOR DECEMBER 1, 2015**

COMES NOW, Defendant, KAREN MORRIS, by and through undersigned counsel and hereby files this her Emergency Motion to Continue the Trial Scheduled for December 1, 2015, and as grounds would state as follows:

1. This is a contested action, for which Defendant opposes the allegations in the Complaint, which is scheduled for trial on December 1, 2015.

2. Discovery was propounded and responded to by both parties, with the latest response to discovery submitted on today's date, November 25, 2015. Though both parties have filed responses to the other's discovery request, a large amount was objected to, or has yet to be received.

3. Much of the disputed discovery issues, pertain to the Defendant's request for any and all notices/certified letters issued by the Plaintiff, from January 1, 2014 to the present.

4. The Court is well aware of the issues presented in the above referenced discovery request, as the Court heard the exact same arguments on November 17, 2015 in Case #: 2015 CC 1274.

5. Once the Court issues an order regarding the Motion to Compel in Case #: 2015 CC 1274, it is likely there will be no need for a subsequent motion to compel in this case, and likewise both parties will be in a position to fully evaluate and present their cases at trial.

6. As the need for the requested discovery in this matter is required to fully defend, and presumably prosecute the case, Defendant would respectfully request the trial be continued, with the future trial date being coordinated and set between the parties after discovery in the matter has been completed, or by this Court once a discovery ruling is entered in Case #: 2015 CC 1274.

7. The Defendant is significantly prejudiced, if this case were to proceed to trial without the ability of the parties to fully complete the discovery process.

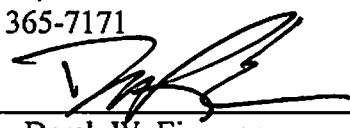
8. The earliest date on JACS for this court to hear any motion was in January of 2016.

WHEREFORE, Defendants respectfully request that this Court enter an Order setting emergency hearing time and/or enter an order continue the trial until the discovery issues can be resolved, with the future trial date being coordinated between the parties after discovery in the matter has been completed, or further ordered by this Court.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a copy of the foregoing has been furnished via email to William C. Price III, Esq., 522 12th Street West, Bradenton, FL 34205, wcprice@wcpriceiiiipa.com, this 25th day of November, 2015.

SYPRETT, MESHAD, RESNICK, LIEB,
DUMBAUGH, JONES, KROTEC &
WESTHEIMER, P.A.
1900 Ringling Blvd.
Sarasota, Florida 34236
(941) 365-7171

BY: 

Derek W. Eisemann
Florida Bar No.: 0092735